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Motion: DEFENDANTS' DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT AND MOTION TO STRIKE;
MOTION TO STAY PROCEEDINGS PENDING BANKRUPTCY

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Case Number: 25NNCV04598 Hearing Date: August 12, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

WOLFGANG STARKE,

Plaintiff(s),

vs.

GOLDEN
TIGER LIFE CORP., et al.,

Defendant(s).

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CASE NO.: 25NNCV04598

[TENTATIVE]

ORDER RE: DEFENDANTS' DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT
AND MOTION TO STRIKE; MOTION TO STAY PROCEEDINGS PENDING BANKRUPTCY

Dept.

3

8:30

a.m.

August 12,
2026

I. INTRODUCTION

On August 19,
2025, plaintiff Wolfgang Starke ("Plaintiff") filed this action against
defendants Golden Tiger Life Corp. ("Golden Tiger Life"), Ajay Dhawan, and
Suparna Dhawan. As Ajay Dhawan and Suparna Dhawan share the same last name, the
Court refers to them by their first names for purposes of clarity and intends
no disrespect.

Plaintiff

filed the operative First Amended Complaint ("FAC") on March 26, 2026,
asserting causes of action for: (1) breach of contract, (2) breach of implied

covenant of good faith and fair dealing, (3) negligent misrepresentation, (4) breach of fiduciary duty, (5) intentional misrepresentation, (6) violation of California Business and Professions Code § 17200 ("UCL"), (7) unjust enrichment, (8) conversion, (9) concealment, and (10) money had and received.

Defendants

Ajay and Suparna (collectively, "the Dhawans" Defendants") filed a demurrer to all causes of action on May 29, 2026. The Dhawans then filed a motion to stay the action pending the resolution of bankruptcy proceedings involving co-defendant Golden Tiger.

Plaintiff

filed opposition briefs to the demurrer, motion to strike, and motion to stay on July 28, 2026.

The

Dhawans filed a combined reply brief on August 3, 2026.

II. DEMURRER

A.

Legal

Standard

A demurrer tests the legal sufficiency

of the pleadings and will be sustained only where the pleading is defective on its face. (*City of Atascadero v. Merrill*

Lynch, Pierce, Fenner & Smith, Inc. (1998) 68 Cal.App.4th 445, 459.)

"We treat the demurrer as admitting all material facts properly pleaded but not contentions, deductions or conclusions of fact or law. We accept the factual allegations of the complaint as true and also consider matters which may be judicially noticed. [Citation.]" (*Mitchell*

v. California Department of Public Health (2016) 1 Cal.App.5th 1000, 1007; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604 ["the facts alleged in the pleading are deemed to be true, however improbable they may be"].) Allegations are to be

liberally construed. (Code Civ. Proc., § 452.) In construing the allegations, the court is to give effect to specific factual allegations that may modify or

limit inconsistent general or conclusory allegations. (*Financial Corporation of America v. Wilburn* (1987) 189 Cal.App.3d 764, 769.)

B.

Factual

Allegations

Plaintiff

alleges that he invested \$1.6 million in a “turmeric-based drink venture and related business lines” initiated by Ajay and his wife, Suparna, first through their private company, non-party Shiv International Corporation (“Shiv International”), and later on, through Golden Tiger Life. (FAC, ¶ 1.) Beginning in September 2018, Ajay solicited investments from Plaintiff, promising substantial equity and returns based on alleged business opportunities with major corporations. (FAC, ¶ 1.) Plaintiff made numerous investments between September 2018 and July 2024, which he claims were diverted by the Dhawans for their own personal benefit and to Shiv International. (FAC, ¶ 4.)

In July 2020,

the parties entered into a Shareholder’s Agreement memorializing Plaintiff’s 20% equity stake in Golden Tiger for \$500,000. The agreement required Individual Defendants to assign all trademarks and intellectual property related to Golden Tiger Life’s product lines from Shiv International to Golden Tiger Life, that directors manage the corporation in accordance with sound business practices, and that annual reports be provided to shareholders. (FAC, ¶ 5.) However, the intellectual property was not timely transferred, Plaintiff was excluded from financial decision making, and annual reports and financial records were withheld for years. (FAC, ¶ 6.)

Plaintiff

further alleges that the parties agreed (verbally and in writing) that his shareholding would be increased to 28%, but that Ajay continued to list Plaintiff as only a 20% shareholder on Golden Tiger Life’s tax returns, and never executed the amended Shareholder’s Agreement. (FAC, ¶ 7.)

C.

Plaintiff’s

First and Second Causes of Action for Breach of Contract and Breach of the Implied Covenant of Good Faith and Fair Dealing

The Dhawans demur to Plaintiff’s First and

Second Causes of Action for breach of contract and breach of the implied covenant.

With respect to Plaintiff's breach of contract claim, the Dhawans argue that Plaintiff refers to both a written July 24, 2020 Shareholder's Agreement and a later oral February 17, 2022 understanding to increase his shares, but cannot tell which obligations are written and which are oral. The Dhawans also contend that the FAC fails to plead a concrete breach of the "written governance covenants" which are conditional and qualified duties that are based on the directors' discretion, and that any breach did not cause Plaintiff to lose his entire investment. (Demurrer, p. 6.) The Dhawans additionally argue that any purported failure to maintain and provide financial reports is not the cause of Plaintiff's alleged damages because Plaintiff does not merely claim damages amounting to the investment made pursuant to the shareholder agreements entered into on July 24, 2020 and February 17, 2022, but his entire investment of \$1.6 million. Furthermore, with respect to Plaintiff's claim for breach of the implied covenant, the Dhawans argue that it is duplicative of Plaintiff's breach of contract claim and, to the extent that Plaintiff alleges they mismanaged Golden Tiger Life, Plaintiff's allegations of mismanagement would impose duties beyond the Shareholder Agreement.

In opposition, Plaintiff solely argues that these arguments should not be considered by the Court because they could have been raised in response to Plaintiff's initial Complaint and the Court already overruled their demurrer to his First and Third Causes of Action. However, in *Carlton v. Dr. Pepper Snapple Group, Inc.* (2014) 228 Cal.App.4th 1200,1211, the court of appeal allowed the defendant to file a renewed demurrer to the entire complaint despite previously overruling a demurrer to the same cause of action. Also, "[t]he interests of all parties are advanced by avoiding a trial and reversal for defect in pleadings." (*Pacific States Enterprises, Inc. v. City of Coachella* (1993) 13 Cal.App.4th 1414, 1420.) The Court additionally observes that even if the First and Third Cause of Actions survived the previous demurrer, these specific arguments were not raised for the Court's consideration.

Nevertheless, despite Plaintiff's failure to address the demurrer's arguments on a substantive level, the Court OVERRULES the demurrer to the First and Second Causes of Action because the Dhawans' noticeably fail to include any authority supporting their arguments regarding the sufficiency of Plaintiff's allegations as a matter of law. "A legal proposition asserted without apposite authority necessarily fails." (*People v. Taylor*

(2004) 119 Cal.App.4th 628, 643). Here, the demurrer only cites to case law for general propositions of law, which do not support any of the arguments that the Dhawans assert.

D. Plaintiff's Fraud Claims

The Dhawans demur to Plaintiff's causes of action for negligent misrepresentation (Third Cause of Action), intentional misrepresentation (Fifth Cause of Action) and concealment (Ninth Cause of Action) on the grounds that they are not specifically pleaded and that the alleged misrepresentations are not actionable because they are "promises or predictions of future events." (Demurrer, p. 9.)

With regard to fraud claims, pleadings must allege facts as to "how, when, where, to whom, and by what means the representations were tendered." (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.) The Court previously noted that there were no specific allegations with respect to any misrepresentations or concealment by Suparna and sustained her demurrer to these claims. Plaintiff's FAC still fails to allege any affirmative misrepresentations by Suparna, but adds sufficient allegations to support his Ninth Cause of Action for fraudulent concealment since Plaintiff alleges that the Dhawans both concealed information about the salaries they were paying themselves and their family members through Golden Tiger Life as well as the payment of their personal credit card balances through Golden Tiger Life's bank accounts. (FAC, ¶ 196.) Accordingly, the demurrer to the Third and Fifth Causes of Action are SUSTAINED and the demurrer to the Ninth Cause of Action is OVERRULED as to Suparna.

As for Plaintiffs fraud claims against Ajay, Ajay argues that any statements made were not actionable. "The law is well established that actionable misrepresentations must pertain to past or existing material facts. [Citation.] Statements or predictions regarding future events are deemed to be mere opinions which are not actionable. [Citations.]" (Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1469.) However, Plaintiff specifically alleges that Ajay misrepresented being "in discussions" with certain individuals and businesses or submitting products for market testing; Ajay also allegedly misrepresented how the business was being managed. (FAC, ¶¶ 160-164; 178-181.)

Therefore, the demurrer to the Third,

Sixth, and Ninth Causes of Action is OVERRULED as to Ajay.

E.

Plaintiff's

Claim for Breach of Fiduciary Duty

Plaintiff alleges that Ajay and Suparna owed and breached fiduciary duties by failing to maintain proper books and records, misappropriating and mismanaging funds, including Plaintiff's substantial capital contributions, causing his individual interest in Golden Tiger Life to be harmed. (FAC, ¶ 172.)

The Dhawans demur to this cause of action on the grounds that Plaintiff is merely pleading a derivative claim and does not allege any direct harm to Plaintiff. (Demurrer, pp. 9-10.) Defendants also argue that Plaintiff fails to allege a derivative action because no pre-suit demand to the board has been made. (Demurrer, p. 10; Corp. Code, § 800.)

To establish a breach of fiduciary duty claim, a minority shareholder must prove: (1) the defendants were majority or controlling shareholders who owed fiduciary duties to the minority; (2) the defendants breached those duties by engaging in self-dealing, unfair transactions, or oppressive conduct that benefited themselves disproportionately; (3) the breach caused injury specifically to the minority shareholder's individual interest rather than to the corporation generally; and (4) damages (Lynch v. Cook (1983) 148 Cal.App.3d 1072.)

Here, Plaintiff alleges that the Dhawans breached their fiduciary duties by fraudulently inducing him to make different investments in Golden Tiger Life. These are specific injuries sustained only by Plaintiff as an individual and directed towards him individually. (See Vega v. Jones, Day, Reavis & Pogue (2004) 121 Cal.App.4th 282, 297 [plaintiff stated individual, not derivative, claim when alleging defendant deceived him into exchanging valuable stock for worthless stock].)

Accordingly, the demurrer to the Fourth Cause of Action is OVERRULED.

F.

Plaintiff's

Seventh Cause of Action for Unjust Enrichment and Tenth Cause of Action for Money Had and Received

The Dhawans argue that Plaintiff's claims for unjust enrichment is inadequately pleaded because Plaintiff does not allege that they personally received any sums or that it would be inequitable for them to retain those benefits. As for Plaintiff's Tenth Cause of Action for money had and received, the Dhawans argue that Plaintiff does not allege that any money was received for Plaintiff's use. However, the Court **OVERRULES** the demurrer to the common counts on the grounds that the Dhawans fail to cite to any legal authority supporting their assertions.

G. Plaintiff's Claim for Conversion

The Dhawans argue that Plaintiff's conversion claim fails, in part, because Plaintiff does not allege a possessory interest to a specific identifiable sum. (Demurrer, p. 15; Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267.) They claim that Plaintiff "does not plausibly plead that he still owned the same dollars in the corporate accounts", but this argument ignores Plaintiff's allegations that he "solely funded" Golden Tiger Life and was "the only known shareholder to have contributed any capital to the company." (FAC, ¶¶ 1, 3.) The Dhawans also claim that Plaintiff refers to undefined amounts of money, but the cited portions of the FAC do not pertain to Plaintiff's conversion claim at all.

Accordingly, the demurrer to the Eighth Cause of Action for Conversion is **OVERRULED**.

H. Plaintiff's Claim for Violation of the UCL

Last, the Dhawans demur to Plaintiff's Sixth Cause of Action for violation of the UCL on the grounds that Plaintiff cannot obtain nonrestitutionary disgorgement or damages. However, Plaintiff only prays for restitution and disgorgement of all amounts by which Defendants were unjustly enriched. Therefore, Plaintiff is not seeking "nonrestitutionary disgorgement or damages" as the Dhawans claim and the demurrer to the Sixth Cause of Action is **OVERRULED**.

III. MOTION

TO STRIKE

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

The Dhawans move to strike paragraphs 175, 185, 190, and 201 of Plaintiff’s FAC, and Plaintiff’s prayer for attorneys’ fees and punitive damages. The specific paragraphs identified are allegations supporting the prayer for punitive damages.

A. Punitive Damages

The Dhawans move to strike Plaintiff’s allegations in support of and request for punitive damages but only argues that no despicable conduct has been alleged or that punitive damages are unavailable in connection with Plaintiff’s contractual or quasicontract claims.

The motion to strike Plaintiff’s punitive damages request is DENIED because the FAC is clear that punitive damages are only being requested with respect to any tortious conduct premised on fraud and the Court has overruled the Dhawans’ demurrer to the Third, Fourth, Fifth, Seventh, and Ninth Causes of Action.

B. Attorneys’ Fees

The Dhawans move to strike Plaintiff’s prayer for attorneys’ fees on the grounds that an “irrelevant matter” is an allegation in a pleading is a demand for judgment requesting relief not supported by the allegations of the complaint and Plaintiff failed to identify any statutory or contractual basis for attorneys’ fees.

(Code Civ. Proc., §§ 431.10, subds. (b)(3), (c); 1021.)

In

opposition, Plaintiff argues that there is no need to strike this prayer because there is no need to plead a right to attorneys' fees at all. Plaintiff relies on *Snatchko v. Westfield LLC* (2010) 187 Cal.App.4th 469, 497, which is inapposite because it involved a party's entitlement to attorneys' fees under Code of Civil Procedure section 1021.5 and does not address a generalized prayer for attorneys' fees. Plaintiff does not identify any agreement or statute which provides for attorneys' fees. Accordingly, the motion to strike is GRANTED with respect to Plaintiff's prayer for attorneys' fees.

IV. MOTION

TO STAY

As

an initial matter, the Court disregards the voluminous exhibits attached to the Dhawans' declarations and requests for judicial notice because they are not relevant or necessary to determine their demurrer, motion to strike, or motion to stay. Moreover, many of the documents are not appropriate for judicial notice and seem to be an improper attempt to litigate the merits of the case.

The Dhawans

argue that this action should be stayed until the resolution, discharge, or dismissal of the Chapter 7 bankruptcy proceeding of Golden Tiger Life. The Dhawans argue that allowing this action to proceed against them personally would "bypass the federal claims process, violate the automatic stay, and waste state court resources." (Motion, p. 5.) The Dhawans claim that this action would result in a "parallel, duplicative trial regarding corporate financial records, transactions, intellectual property development, and executive compensation that are currently under the active and exclusive investigation of a federal Chapter 7 Trustee and her appointed national counsel." (Motion, p. 5.) The Dhawans also argue, without any explanation, that Plaintiff's claims against them personally are "inextricably intertwined" with Golden Tiger Life's bankruptcy because their alleged liability arises from their conduct as the officers, directors, and shareholders of Golden Tiger Life. There is no explanation how Golden Tiger Life's bankruptcy proceedings would be affected or what kinds of "inconsistent rulings" would be made.

V. CONCLUSION

The demurrer to the FAC is OVERRULED as to all causes of action asserted against Ajay Dhawan.

The demurrer to the FAC is SUSTAINED with leave to amend as to the Third and Fifth Causes of Action against Suparna Dhawan and OVERRULED as to the First, Second, Fourth, Sixth, Seventh, Eighth, Ninth, and Tenth Causes of Action. Plaintiff is given 20 days' leave to amend.

The motion to strike is DENIED as to Plaintiff's prayer for punitive damages and GRANTED as to Plaintiff's prayer for attorneys' fees. Leave to amend is not granted at this time.

The motion to stay proceedings is DENIED.

Moving parties to give notice.

Dated
this 12th
day of August
2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.